

December 13, 2024

Dr. XXXXX

Subject: Installation of Closed-Circuit Television in Dr. XXXXX's Office

I refer to the complaint submitted to my Office on XXXXX against Dr. XXXXX (hereinafter referred to as "the Respondent") regarding the installation of Closed-Circuit Television (CCTV) in her office (hereinafter referred to as "the office") and the related correspondence, which concludes with the email dated XXXXX.

2.1. The complaint concerned, among other things, the fact that one of the cameras comprising the CCTV system is directed towards the examination room, while there is also a camera installed that records the entrance of the adjacent apartment. Furthermore, as the complainant alleges, the CCTV system also records audio.

2.2. In the context of investigating the complaint, on October 31, 2024, I communicated in writing with the Respondent, requesting her positions on the claims of the complainant, as well as clarifications on questions I had posed.

2.3. In her response letter, on the same day, the Respondent stated, in summary, the following:

- a. The CCTV system was installed for the purpose of securing her office and herself.
- b. The CCTV system does not record audio.
- c. XXXXX
- d. XXXXX
- e. XXXXX.

2.4. The Respondent attached photographic material from the CCTV system, as well as screenshots showing the recording range of each camera.

3.1. In the context of my duties, I must inform you that the use of CCTV constitutes an intrusive measure that restricts the right to privacy. Therefore, in any case, the Respondent must ensure that there is a balance between her legitimate interest in protecting her property and the fundamental right to privacy of patients and employees. The installation of such a system should be the last resort, provided that the intended purposes cannot be achieved through other less burdensome and intrusive measures.

3.2. Based on Opinion 2/2018 that I issued on October 19, 2018, "In a typical office space of a business, video surveillance should be limited to entry and exit areas, outside elevators, stairwells, parking areas, cash registers, or areas with safes, electromechanical equipment, etc., provided that the cameras focus on the asset being protected and not on the employees' spaces and their faces. Recording employees in their offices, meeting rooms, hallways, kitchens, outside restrooms, changing rooms, etc., is prohibited."

3.3. According to Directive 1/2011 of the Hellenic Data Protection Authority, which states, "The operation of a video surveillance system in hospitals, clinics, offices, and other places where health services are provided for the purpose of securing persons and property must be limited exclusively to entry and exit points, cash register areas, or critical facility areas (e.g., electromechanical installations, storage of medical supplies, etc.) where, in principle, visitors or patients cannot have access. Cameras are not allowed under any circumstances to monitor the movement of waiting rooms, cafeterias and dining areas, hospital corridors, patient rooms, examination or medical intervention rooms, restrooms, and showers, as well as the offices of doctors and the workplaces of other medical and nursing staff."

4. Based on the above and considering the photographic material and screenshots that have been communicated to my Office, it appears that there are XXXXX cameras operating in the office, for which I provide my comments:

4.1. Camera 1: The camera records within the space of the Respondent's office, capturing images

from an area that is covered by a screen and appears to be used as an examination room.

4.1.1. If the office is used solely by the Respondent and not by any other employee, then there is no issue with recording that specific area. Otherwise, the camera must be removed.

4.1.2. Regarding the recording of part of the space behind the screen, if that space is indeed used as an examination room, then the camera should be directed in such a way that it does not capture images from the examination room. On one hand, we understand that when the screen is closed, it is not possible to record within the examination room; on the other hand, all necessary measures must be taken to exclude the possibility of recording the patient during their examination.

4.1.3. Furthermore, even if technical measures (e.g., adding a covering veil) are taken to limit the recording range of the camera, the way the camera is directed will continue to give the impression of visual recording and create reasonable concerns. Specifically, in such spaces as the office, where patients enter daily, the issue is particularly sensitive due to the nature of the personal data ("sensitive data") that may give (even falsely) the impression of being recorded, regardless of any assurances from the doctor to the patients to the contrary.

4.2. Camera 2: The camera records the entrance of the apartment building and part of the public road

4.2.1. Any camera in common areas of the apartment building is installed following a Decision of the Management Committee. My Office does not have the authority to examine cases related to the installation of a camera in a common area of an apartment building. The authority of my Office is to address issues related to the installation of CCTV that records common/publicly accessible areas and not private ones.

4.2.2. In this case, the specific camera captures images from the public road as well. Therefore, within the scope of our responsibilities, I inform you that appropriate measures must be taken (e.g., repositioning the camera or adding a covering veil) so that the public road and the sidewalk are not recorded.

4.3. Camera 3: The camera records the area outside the entrance of the clinic

4.3.1. As previously mentioned, my Office does not have the authority to examine cases related to the installation of a camera in a common area of an apartment building. I also note that, based on the guidelines that have been periodically posted on my Office's page, the privacy of third parties, namely tenants and/or passersby in the corridor outside the clinic, should not be affected.

4.3.2. Therefore, if the part of the corridor being recorded is also used by passersby, in addition to the individuals entering your clinic, it is recommended that the camera be removed and repositioned at the entrance, inside the clinic. If the part of the corridor is used only by patients of the complainant, then it is recommended that the camera be directed in such a way that it exclusively records the entrance of the clinic and does not give the impression of recording neighboring apartments.

4.4. Camera 4: The camera records the reception area of the clinic

4.4.1. The camera captures images of the employees at the reception while performing their duties. Please be informed that continuous recording of employees during their working hours is not permitted. Appropriate measures must be taken so that only areas where recording is warranted are captured. Otherwise, the camera must be removed.

5.1. Taking the above into account, the installation of CCTV at the locations where it has been carried out does not appear to comply with the aforementioned guidelines.

5.2. Based on the powers granted to me by Article 58 of the General Data Protection Regulation (EU) 2016/679 (GDPR), I direct the following Orders to Dr. XXXX, as follows:

a. to act appropriately so that the installation of CCTV becomes compliant with the recommendations mentioned in this letter and

b. to inform my Office regarding her actions by XXXX, attaching any evidence of her positions (e.g., screenshots).

Eirini Loizidou Nikolaidou
Commissioner for Personal Data Protection